JULIAN'S BATAVIAN CAMPAIGN, AN EMBEZZLEMENT TRIAL IN BRITAIN, AND BARBARIAN ACCESS TO THE *ANNONA MILITARIS*

By JAMES M. HARLAND

In his Epitaphios *for the emperor Julian, composed in Antioch at some point between 365 and 368, Libanius describes an embezzlement trial that was held most likely in 359, in which Julian ruled against the accused, defying the wishes of Constantius II's praetorian prefect, Florentius. Libanius puzzlingly suggests that the trial prompted Julian's campaign to rebuild fortresses in Batavia and to restore shipments of British grain blockaded by barbarian forces. Scholars have yet to explain the causal and chronological relationship between these events. This article suggests that Libanius's narrative is a propagandistic representation of several distinct stages of the taxation dispute Julian fought with Florentius. With the aid of recent advances in our archaeological understanding of agricultural practices in Britain and on the lower Rhine, the article argues that in response to this dispute, Julian's Batavian campaign was intended to disrupt longstanding access by barbarians on the lower Rhine to the later Empire's military supply mechanisms.*

This article examines how Julian exploited and undermined Roman-barbarian relations during his Batavian campaign in Gaul in 357–59 and in this way offers a unique window on economic and military relationships between the empire and its neighbors on the lower Rhine. Previous studies have portrayed Julian as both an idealist and a shrewd political actor, but the full significance of his Batavian campaign has been overlooked.[1] Most approaches to the event have simply examined it as a

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[1] For recent overviews, see Adrastos Omissi, *Emperors and Usurpers in the Later Roman Empire: Civil War, Panegyric, and the Construction of Legitimacy* (Oxford,

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minor stage in Julian's Gallic wars.[2] Others have used it to chart the development of later Frankish ethnogenesis and political institutions. These teleological aims have tended toward somewhat credulous analyses of the late Roman sources.[3]

This is a missed opportunity. The Batavian campaign grants us a rare window onto a set of complex, distinct, yet inextricably linked socio-economic phenomena which met at the intersection of the Rhine frontier, and which determined Roman-barbarian relations across this frontier. Close attention to the Batavian campaign allows us to identify the participation of barbarian peoples in the region in the mechanisms of taxation and supply, collectively known as the *annona militaris*, which developed in the third century.[4] In the period of Julian's campaign, barbarian groups on the lower Rhine had not only been granted use of, but also participated in conflict over material resources shipped by the empire along the Rhine frontier axis in order to feed its armies. As an act of political opportunism, Julian's campaign ended such state-sanctioned access by barbarian groups in this region to the resources shipped by the empire along the Rhine. Contrary to the belief that Julian's actions were a response to the grain supply's disruption, this article argues that they were the cause of that disruption, motivated by political expediency.[5]

2018), 200–22; and Bruno Bleckmann, "From Caesar to Augustus: Julian against Constantius," in *A Companion to Julian the Apostate*, ed. Stefan Rebenich and Hans-Ulrich Wiemer (Leiden, 2020), 97–123, at 106–10. For a classic study of Julian's calculating strategy, see Ilse Müller-Seidel, "Die Usurpation Julians des Abtrünnigen im Lichte seiner Germanenpolitik," *Historische Zeitschrift* 180 (1955): 225–44. On Julian's reign and behavior as a political actor more generally, see Glenn Bowersock, *Julian the Apostate* (Cambridge, MA, 1978); and Klaus Bringmann, *Kaiser Julian* (Darmstadt, 2004).

[2] See nn. 64 and 65, below. Even those who correctly play down the scale of the Frankish threat tend to pay little attention to the episode. See John F. Drinkwater, "Julian and the Franks and Valentinian I and The Alamanni: Ammianus on Romano-German Relations," *Francia* 24 (1997): 1–16. Even Drinkwater's detailed reconstruction of Julian's Gallic Wars devotes less than a paragraph to the affair: John F. Drinkwater, *The Alamanni and Rome, 213–496 (Caracalla to Clovis)* (Oxford, 2007), 242.

[3] See, for example, Thomas Anderson Jr., "Roman Military Colonies in Gaul, Salian Ethnogenesis, and the Forgotten Meaning of *Pactus Legis Salicae* 59.5," *Early Medieval Europe* 4 (1995): 129–44, at 135–39; and J.-P. Poly, "Freedom, Warriors' Bond, Legal Book: The *Lex Salica* between Barbarian Custom and Roman Law," *Clio@Themis* 10 (2016) https://doi.org/10.35562/cliothemis.1149: par. 4–7.

[4] Fritz Mitthof, *Annona Militaris: Die Heeresversorgung im Spätantiken Ägypten* (Florence, 2001); and Chris Wickham, *Framing the Early Middle Ages* (Oxford, 2005), 73.

[5] On the scale of the barbarian threat, see Drinkwater, "Julian and the Franks"; idem, "Ammianus, Valentinian, and the Rhine Germans," in *The Late Roman World and its Historian: Interpreting Ammianus Marcellinus*, ed. J. W. Drijvers and D. Hunt (London, 1999), 127–37; idem, *The Alamanni and Rome*; Michael Kulikowski, "Constantine and the Northern Barbarians," in *The Cambridge Companion to the Age of Constantine*, ed. Noel Lenski (Cambridge, 2005), 347–76, at 352–54; Guy Halsall, *Barbarian Migrations and the Roman West* (Cambridge, 2007), 144–45; and idem, "Two Worlds Become One: A 'Counter-Intuitive' View of the Roman Empire and 'Germanic' Migration," *German History* 34 (2014): 515–32. For an alternative point of view, see Peter Heather, *The Fall of the Roman Empire: A New History* (London, 2005), 446.

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Recent advances in agricultural archaeology in Britain, northern Gaul, and the barbarian world east of the lower Rhine reveal that the Britain-Rhine taxation spine served as a vital conduit for the regular shipping of grain in order to feed armies along the frontier.[6] This archaeological evidence for this system survives in the vast volumes of pottery that piggybacked on this grain shipment and attest to centers of tax collection and distribution and in the multitude of coins that paid for bulk purchase of any shortfall.[7] What has been less well appreciated, however, is that such a vast volume of surplus being shipped directly along one of the most prominent imperial frontiers must have also had a drastic impact upon social relations in the world beyond the Roman frontier. By reading the textual record against the grain with the support of archaeological evidence, we can examine the impact of the Batavian campaign on these social relations. This new interpretation of the campaign has significant ramifications for our understanding of Roman-barbarian relations in the North Sea world and the shape which that world took after the empire's control of the north-western provinces receded. This in turn provides vital context for the mobility that this region witnessed in the fifth century and beyond.

The background to the Batavian campaign

In the winter of 357 and again in the spring or early summer of 358 Julian campaigned against Franks, who were present in the Rhine-Meuse Delta, before allowing them to settle on Roman territory in Toxandria. The first of these to be named, the Salians, are a nebulous group whose name first appears in the context of Julian's campaign, but may have been descendants of Franks settled in Batavia in the later third century by Constantius I.[8] They had been driven into Toxandria from Batavia by a faction that contemporaries called the "Chamavi."[9] Julian's first assault in 357 was on a group of 600 Franks occupying the Meuse river, who after surrendering were sent as captives for Constantius II's armies. After this, because

[6] On shipping on the Rhine more generally, see the contributions in *Der Rhein als europäische Verkehrsachse: Die Römerzeit*, ed. Heike Kennecke (Bonn, 2014).

[7] For a summary, see Robin Fleming, *The Material Fall of Roman Britain, 300–525 CE* (Philadelphia, 2020), 370–87, at 371–76.

[8] *Pan. Lat.* 8.8–9; and Anderson Jr., "Roman Military Colonies in Gaul," 136–37.

[9] On the problems regarding the identity of barbarian peoples like the Chamavi, who were frequently conflated with the Saxons and Franks in late antique sources, see Andrew Gillett, "The Mirror of Jordanes: Concepts of the Barbarian, Then and Now," in *A Companion to Late Antiquity*, ed. Philip Rousseau (London, 2009), 392–408. The most compelling historical work suggests that "Saxon" and "Frank" were, by the mid-to-late fourth century, simply generic Roman ethnographic terms to refer to inhabitants of the lower Rhine. See Ian N. Wood, "The Channel from the 4th to 7th Centuries AD," in *Maritime Celts, Frisians and Saxons*, ed. Séan McGrail (London, 1990), 93–98, at 96; and Robert Fliermann, *Saxon Identities, AD 150–900* (London, 2017), 27–32.

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conflict on the lower Rhine had brought grain shipments from Britain to a halt, Julian took his forces further into Batavia in the spring or early summer of 358 and seemingly again in 359, defeating first the Salians and then the Chamavi, both of whom immediately surrendered to Julian and delivered hostages in exchange for new peace treaties, after which Julian was able to ship British grain up the Rhine.[10]

This putatively minor episode attracted notice from multiple contemporaries, all of whom described the event as part of a series of conflicts between Julian and his rivals relating to issues of taxation and corruption. It should not be surprising that such conflicts would arise in a part of the empire with one of the highest concentrations of its soldiers. The military was far and away the greatest single burden on the imperial fiscal system.[11] Julian may have exploited the opportunity provided to him by this scenario to allege corruption against his rivals. These allegations concerned mechanisms for the supply of barbarian soldiers from beyond the frontier, namely, the superindiction (a special levy that acted as the empire's mechanism for addressing budgetary shortfalls), as a means of tax collection and the distribution of that taxation's proceeds via the *annona militaris*.[12] The superindiction, despite its technical status as an 'extraordinary' fiscal mechanism, was by necessity a standard mechanism by which to supply soldiers enlisted from across the Rhine in an irregular fashion. It was the only formal means by which this could be done in a standardized way, because no separate fiscal chest is ever known to have been allocated from the standard indiction to pay barbarian allies.[13]

Through a reexamination of Julian's reported motivations in Batavia, this article advances three related arguments. First, a group of seemingly separate events in the years of 357–59, described in several contemporary texts written by Julian or his supporters, in fact represent different stages of a single taxation and corruption dispute. Second, prior to Julian's attack on Batavia, the Salians and

[10] Amm. Marc. 17.8–9 and 18.2; Julian. *Epist. ad. ath.* 280; Lib. *Orat.* 18.82–89; Eunapius, *Fr.* 3.3–6; Zos. 3.5–8; and *Pan. Lat.* 3.

[11] Richard Duncan-Jones, *Structure and Scale in the Roman Economy* (Cambridge, 1990), 105–16; Jean–Michel Carrié, "L'état à la recherche de nouveaux modes de financement des armées (Rome et Byzance, IVe–VIIIe siècles)," in *The Byzantine and Early Islamic Near East, Vol. III: States, Resources and Armies*, ed. Averil Cameron (Princeton, 1995), 27–60, at 30; and Wickham, *Framing the Early Middle Ages*, 73–74.

[12] On the general workings of the superindiction, see A. H. M. Jones, *The Later Roman Empire, 284–602: A Social, Economic, and Administrative Survey*, 2 vols. (Oxford, 1964), 1:449–59; Carrié, "L'état à la recherche de nouveaux modes de financement des armées"; and Paolo Tedesco, "Indiction and Superindiction," in *The Oxford Dictionary of Late Antiquity*, ed. O. Nicholson (Oxford, 2018), 771–72.

[13] Paolo Tedesco, *State, Taxation and Power in the Late Roman West* (forthcoming), refuting Herwig Wolfram, *Gotische Studien: Volk und Herrshaft im frühen Mittelalter* (Munich, 2005), 83 and 186. I am grateful to Paolo Tedesco for sharing his monograph with me before publication.

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Chamavi had been allocated funds from the *annona militaris*. This should not be surprising, as these groups had already settled in Batavia and Toxandria and served the Roman army in large numbers since the late third century.[14] Both Salians and Chamavi may have accrued rights to the *annona* by treaty with either Magnentius or Constantius II when serving in their armies during their civil war. Third, the relationship between these rights and Julian's taxation controversy allows us to demonstrate the ties of dependency that these groups had to the Roman Empire and to analyze the dramatic consequences that could occur when such ties were ruptured.

The Material Basis for the annona militaris

Scholars have tied problems with the supply of Julian's armies attested in contemporary sources to the alleged general collapse of the Rhine frontier, which, according to Libanius, had already brought grain shipments from Britain up the Rhine to a halt for some time before Julian's Gallic career. Recent developments in our understanding of the agricultural economy based on archaeological evidence—especially the reliance by military forces in the lower Rhine region on supplies of British grain—calls this narrative into question. It is difficult with the present state of archaeological knowledge to reconstruct with accuracy the infrastructure for the Gallic military supply network in detail.[15] But painstaking work drawing on decades' worth of archaeological data has made it possible to identify overall patterns of considerable significance.[16] The *New Visions of the Countryside in Roman Britain* project draws upon data from over one million fields, including previously unstudied grey literature.[17] As the project has found, Britain had largely become economically self-sufficient by the third and fourth centuries with an emphasis on spelt cultivation.[18] South and east of the Fosse Way, it possessed an agrarian economy geared toward surplus production, as shown by various indices including evidence for more extensive cultivation with lower inputs of labor due to spelt's relatively high yields.[19] The infrastructure for this

[14] Drinkwater, *The Alamanni and Rome*, 73.

[15] Michel Reddé, "Conclusion: Des greniers ruraux aux greniers militaires et urbains. Les enjeux historiques d'une enquête archéologique," in *Rural Granaries in Northern Gaul: From Archaeology to Economic History*, ed. Stéphane Martin (Leiden, 2017), 128–44, at 140.

[16] See esp. Alexander Smith et al., *The Rural Settlement of Roman Britain* (London, 2016); Martyn Allen et al., *The Rural Economy of Roman Britain* (London, 2017); and *Gallia Rustica I: Les campagnes du nord-est de la Gaule, de la fin de l'âge du Fer à l'Antiquité tardive*, ed. Michel Reddé (Bourdeaux, 2017).

[17] Allen et al., *The Rural Economy of Roman Britain*, 142–77, at 164. Fleming, *The Material Fall of Roman Britain*, 19–25, has used this and other material to make a firm case for Britain's longstanding role in surplus export.

[18] Allen et al., *The Rural Economy of Roman Britain*, 173.

[19] Allen et al., *The Rural Economy of Roman Britain*, 11–82, at 17–18.

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large-scale export is attested by both the prevalence of aisled buildings, which were likely used for the storage of grain as well as the largest concentration of corn-dryers found in the north-western provinces. These corn-dryers were widely distributed from the second century onwards and are indicative of significant processing.[20] Sites like Orton Hall Farm (Cambs.) provide evidence of grain processing suggesting surplus on the scale of an agri-business.[21] The concentration of these storage and processing buildings on a limited number of farmsteads does not imply the operation of a free market, but possible state involvement in the timing of exports.[22]

The results issued from the *Rural Landscape of Roman Gaul* project have similarly found that in the highly productive loess-soil regions of the Cologne Bay, an agrarian economy focusing on surplus export, specializing in spelt, barley, and emmer, had come into being by the first century with villa estates such as that at Hambach in modern North-Rhine Westphalia or Voerendaal in the modern south-eastern Netherlands almost entirely specialized in spelt by the later Roman period.[23] These formed part of a wider belt of loess soil extending across Germania Inferior and Belgica Secunda between Cologne and Bavai, characterized by high productivity and well-integrated transportation networks, all along which were granaries of similar types to those found in Britain.[24]

The development of a surplus-oriented cash crop economy, driven by Roman expansion, was not uniform across these regions. In some instances what we see are simply developments from typical cultivation practices from before the Roman period.[25] The overall picture of the agricultural economy in northern Gaul, for example, is not one of vast wealth in the later Roman period. Despite

[20] Lisa Lodwick, "The Organisation of Cereal Production in Britannia: Grain-Drying Ovens as Evidence for Agricultural Integration," in *Archaeology and Economy in the Ancient World – Proceedings of the 19th International Congress of Classical Archaeology, vol. 17: Villas, Peasant Agriculture, and the Roman Rural Economy*, ed. A. Marzano (Cologne, 2018), 57–72; and Allen et al., *The Rural Economy of Roman Britain*, 55–61.

[21] Allen et al., *The Rural Economy of Roman Britain*, 55–61.

[22] Allen et al., *The Rural Economy of Roman Britain*, 173

[23] Marion Brüggler et al., "The Roman Rhineland: Farming and Consumption in Different Landscapes," in *Gallia Rustica I*, ed. Reddé, 19–95, at 85; and Corrie C. Bakels, *The Western European Loess Belt: Agrarian History, 5300 BC–AD 1000* (London, 2009), 167.

[24] On the networks, see Nico Roymans and Ton Derks, "Rural Habitation in the Area of the Texuandri (Southern Netherlands/Northern Belgium)," in *Gallia Rustica I*, ed. Reddé, 97–123. On the granaries, see Alain Ferdière, "De nouvelles formes de stockage de céréales à l'époque romaine en Gaule: Quels changements avec quel(s) moteur(s)?" in *Rural Granaries in Northern Gaul: From Archaeology to Economic History*, ed. Stéphane Martin (Leiden, 2017), 73–105; and Smith et al., *The Rural Settlement of Roman Britain*, 44–74.

[25] Allen et al., *The Rural Economy of Roman Britain*, 17–20; and Ferdière, "De nouvelles formes de stockage," in *Rural Granaries in Northern Gaul*, ed. Martin, 73–105.

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Julian's protestations that Florentius's tax measures were unnecessary, settlements on the lower Rhine plain, stretching from Krefeld to Nijmegen, had become barely self-sufficient even by the second century, when there was a much lower military population than in the third and fourth centuries.[26] The nobility of Xanten did not hold much land in the city's immediate hinterland, relying instead on estates a hundred kilometers to the south-west in the fertile loess zone.[27] Further south, between the Eifel and the Rhine, there were close ties between military-driven basalt and tuff stone quarrying and the comparative villa wealth in the districts of Mayen and Andernach. These districts also provide evidence for direct military involvement in quarrying in the form of granaries for workers of a type also found on Hadrian's Wall.[28] On this part of the lower Rhine a good harvest could sometimes produce sufficient surplus for export, but this was far from secure.[29] Late Roman elite landowners on the Rhine were dependent on the state, as attested by the construction of fortified granaries and the low density of high-status villas even in areas of high productivity.[30] This level of precarity suggests that the lower Rhine frontier required constant supply from elsewhere.

This supply was very likely procured from Britain. An anonymous text (perhaps a merchant travel guide) completed between 350–62 remarked that Britain had "all goods in abundance" (*in omnibus bonis abundans*).[31] In the late Roman period, a shift to net surplus grain production in the villa system took place in Britain to such an extent that previous pastoral practices such as sheep folding, which had been present since the Middle Iron Age, were phased out

[26] Brüggler et al., "The Roman Rhineland," in *Gallia Rustica I*, ed. Reddé, 65–70.

[27] Brüggler et al., "The Roman Rhineland," in *Gallia Rustica I*, ed. Reddé, 40. This confirms the arguments of Clive Bridger, "Veteran Settlement in the Lower Rhineland: The Evidence from the *civitas Traianensis*," *Journal of Roman Archaeology* 19 (2006): 137–49, at 140.

[28] Ricarda Gilljohan, Angelika Hunold, and Stefan Wenzel, "Rural Life and Industry between the Eifel and the Rhine," in *Gallia Rustica I*, ed. Reddé, 125–52, at 146–47.

[29] Gilljohan et al., "Rural Life and Industry," in *Gallia Rustica I*, ed. Reddé, 141.

[30] Paul Van Ossel, "Insécurité et militarisation en Gaule du Nord au Bas-Empire: L'exemple des campagnes," *Revue du Nord* 77 (1995): 27–36; Helmut Bender, "Archaeological Perspectives on Rural Settlement in Late Antiquity in the Rhine and Danube Area," in *Urban Centers and Rural Contexts in Late Antiquity*, ed. Thomas S. Burns and John W. Eadie (East Lansing, MI, 2001), 147–61; Guy Halsall, "Villa, Territories and Communities in Merovingian Gaul," in *People and Space in the Middle Ages, 300–1300*, ed. Andrew Reynolds, Wendy Davies, and Guy Halsall (Turnhout, 2006), 209–32, at 212–15; and idem, "From Roman fundus to Carolingian Grand Domaine: Crucial Ruptures between Late Antiquity and the Middle Ages," *Revue Belge de Philologie et d'Histoire* 90 (2012): 273–98. On the interdependency of civilians and the state on the Rhine, see also Alfred Schäfer, "Köln: Römischer Hafen und rheinseitige Stadtbefestigungen: Zur Rolle des Römischen Heeres als Bauträger," in *Der Rhein als europäische Verkehrsachse*, ed. Kennecke, 117–44.

[31] *Expositio totius mundi et gentium* 67.

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almost completely.[32] An intensification of ultimately unsustainable agricultural practices eventually forced farmers to move to heavy clay soils.[33] The massively increased surplus export in the later Roman period must surely have gone to the Rhine. Digital network analyses of the Rhine's transportation routes reveal the ease with which the produce of these estates could be shipped via the mouth of the river.[34] Magnus Maximus's decision to use this route for his invasion in 383 reinforces the inference that this was the most viable route for large-scale shipping between Britain and the continent in this period.[35]

In Toxandria and Batavia, where Julian's attack took place, the sandy soils were far less productive; these regions barely met subsistence requirements.[36] Batavia's surplus came primarily from animal husbandry, especially cattle farming.[37] Grains grown for surplus export in the Roman northwest were rarely sown in this region, as this would cause soil exhaustion.[38] Numerous large granaries were nevertheless built in Batavia between the late second and early third century. The storage of imported taxation in kind is a compelling explanation for this development.[39] The distribution of these granaries, which show evidence of local control in different parts of Batavia, suggests ties to the settlements of powerful families, who had access to the proceeds of taxation from elsewhere. [40] Such ties between storage infrastructure and control by local elites map well onto

[32] Lisa Lodwick, "Cultivating Villa Economies: Archaeobotanical and Isotopic Evidence for Iron Age to Roman Agricultural Practices on the Chalk Downlands of Southern Britain," *European Journal of Archaeology* 26 (2023): 445–66, at 457–58.

[33] Lodwick, "Cultivating Villa Economies," 460.

[34] Rowin J. van Lanen et al., "Roman and Early-Medieval Long-Distance Transport Routes in North-Western Europe: Modelling Frequent-Travel Zones Using a Dendroarchaeological Approach," *Journal of Archaeological Science* 73 (2016): 120–37.

[35] Zos. 4.35.

[36] Contrary to the argument in Maaike Groot et al., "Surplus Production for the Market? The Agrarian Economy in the Non-Villa Landscapes of Germania Inferior," *Journal of Roman Archaeology* 22 (2009): 231–52. See Stéphane Martin, "Storage in a Non-Villa Landscape: The Batavian Countryside," in *Rural Granaries in Northern Gaul: From Archaeology to Economic History*, ed. Stéphane Martin (Leiden, 2017), 106–27.

[37] Roymans and Derks, "Rural Habitation in the Area of the Texuandri," in *Gallia Rustica I*, ed. Reddé, 103 and 107–108; Corrie C. Bakels, Inge van der Jagt, and Richard Jansen, "Livestock and Plant Resources in Rural Sites on Sandy Soil in the Very North of Northeastern Gaul," in *Productions agro-pastorales, pratiques culturales et élevage dans le nord de la Gaule du deuxième siècle avant J.-C. à la fin de la période romaine*, ed. Sébastien Lepetz and Véronique Zech-Matterne (Quint-Fonsegrive, 2017), 75–84, at 79–81; and Martin, "Storage in a Non-Villa Landscape," in *Rural Granaries in Northern Gaul*, ed. Martin, 106–27.

[38] Bakels, van der Jagt, and Jansen, "Livestock and Plant Resources," 79–81.

[39] Martin, "Storage in a Non-Villa Landscape," in *Rural Granaries in Northern Gaul*, ed. Martin, 106–27.

[40] Martin "Storage in a Non-Villa Landscape," in *Rural Granaries in Northern Gaul*, ed. Martin, 121.

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the distribution mechanisms for the *annona* utilized by the Roman state, under which the administration of public granaries as well as distribution of the *annona* from these granaries were public *munera* carried out by *decuriones*.[41] The proceeds of this taxation would most likely have come from the productive loess-soil regions further up the Rhine, the productive estates of the Somme valley in Belgica Secunda, and the highly productive agricultural estates in Britain's southeast.

Granaries of this sort were rare at the turn of the fourth century, but there are extant examples, whose rarity likely reflects problems of archaeological method more than an actual reduction in numbers.[42] A reappraisal of the dating schemes for the archaeology of the later Roman lower Rhine has suggested that many sites that putatively ended with the so-called *Limesfall* of the late third century may in fact have persisted into the fourth century.[43] The granaries of Batavia fall within the purview of archaeological contexts that are affected by this dating reappraisal. Their continued presence into the fourth century certainly cannot be ruled out. This is not least the case because the basic morphology of these buildings remained broadly static between the Bronze Age and the Middle Ages. The majority of excavated granaries in Batavia do not possess the sort of clear stratigraphic and material associations that would allow them to be assigned any chronological context at all.[44]

The archaeological record therefore throws cold water on the idea that shipments to the Rhine valley from Britain were an exceptional response to the crisis in the Rhine-Meuse delta or that such shipments only took place in times of war.[45] Both Libanius and Ammianus confirm that grain had been regularly transported from Britain to this part of the Rhine.[46] This would have been essential to maintaining the frontier. Moreover, Batavia possessed storage infrastructure well beyond its own subsistence requirements or productive capacity, which was likely intended to store grain imported from elsewhere, most likely from Britain.

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[41] Jones, *Later Roman Empire* 1:458–59.

[42] See Martin, "Storage in a Non-Villa Landscape," in *Rural Granaries in Northern Gaul*, ed. Martin, 120.

[43] Stijn Heeren, "The Theory of 'Limesfall' and the Material Culture of the Late 3rd Century," *Germania* 94 (2016): 185–209.

[44] Martin, "Storage in a Non-Villa Landscape," in *Rural Granaries in Northern Gaul*, ed. Martin, 110–11.

[45] Contrary to Wickham, *Framing the Early Middle Ages*, 77. On this point see also Fleming, *The Material Fall of Roman Britain*, 21, drawing on Allen et al., *The Rural Economy of Roman Britain*, 142–77.

[46] Lib. *Orat*. 18.83; and Amm. Marc. 18.2.3–4. The fortifications named by Ammianus as receiving British grain are *Castra Herculis* (possibly near Arnhem), *Quadriburgium* (possibly near Nijmegen), *Colonia Ulpia Traiana* (Xanten), Neuss, Bonn, Andernach, and Bingen.

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Julian's Motivations for the Attack on Batavia

The evidence for Julian's motivations for the campaign comprises the following:

1. The praetorian prefect Florentius's attempted payment of the Chamavi, as described in Julian's *Letter to the Athenians*.[47]
2. An alleged embezzlement trial involving British military officials and Florentius described by the rhetorician Libanius in the oration he composed in the reign of Valens to commemorate Julian's death.[48]
3. A set of taxation reforms relating to a superindiction, which Julian embarked upon in Gaul in opposition to Florentius as described in the *Res Gestae* of Ammianus Marcellinus (who had served as a staff officer in Julian's army) as well as in Julian's letter to the physician Oribasius.[49]

The Letter to the Athenians

In the *Letter to the Athenians*, written in 361 to justify his usurpation against his cousin Constantius, Julian writes about the events of 358:

> τὸ δὴ μετὰ τοῦτο δεύτερος ἐνιαυτὸς καὶ τρίτος, καὶ πάντες μὲν ἀπελήλαντο τῆς Γαλατίας οἱ βάρβαροι, πλεῖσται δὲ ἀνελήφθησαν τῶν πόλεων, παμπληθεῖς δὲ ἀπὸ τῆς Βρεττανίδος ναῦς ἀνήχθησαν. ἑξακοσίων νηῶν ἀνήγαγον στόλον, ὧν τὰς τετρακοσίας ἐν οὐδὲ ὅλοις μησὶ δέκα ναυπηγησάμενος πάσας εἰσήγαγον εἰς τὸν Ῥῆνον, ἔργον οὐ μικρὸν διὰ τοὺς ἐπικειμένους καὶ παροικοῦντας πλησίον βαρβάρους. ὁ γοῦν Φλωρώντιος οὕτως ᾠετο τοῦτο ἀδύνατον, ὥστε ἀργύρου δισχιλίας λίτρας ὑπέσχετο μισθὸν ἀποτίσειν τοῖς βαρβάροις ὑπὲρ τῆς παρόδου, καὶ ὁ Κωνστάντιος ὑπὲρ τούτου μαθών' ἐκοινώσατο γὰρ αὐτῷ περὶ τῆς δόσεως" ἐπέστειλε πρός με τὸ αὐτὸ πράττειν κελεύσας, εἰ μὴ παντάπασιν αἰσχρόν μοι φανείη. πῶς δὲ οὐκ ἦν αἰσχρόν, ὅπου Κωνσταντίῳ τοιοῦ. τὸν ἐφάνη, λίαν εἰωθότι θεραπεύειν τοὺς βαρβάρους; ἐδόθη μὴν αὐτοῖς οὐδέν" ἀλλ' ἐπ' αὐτοὺς στρατεύσας, ἀμυνόντων μοι καὶ παρεστώτων τῶν θεῶν, ὑπεδεξάμην μὲν μοῖραν τοῦ Σαλίων ἔθνους, Χαμάβους δὲ ἐξήλασα, πολλὰς βοῦς καὶ γύναια

[47] Julian. *Epist. ad. athen.*
[48] Lib. *Orat.* 18.
[49] Amm. Marc. 17.1; and Julian. *Epist.* 4.

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μετὰ παιδαρίων συλλαβών. οὕτω δὲ πάντας ἐφόβησα καὶ παρεσκεύασα καταπτῆξαι τὴν ἐμὴν ἔφοδον, ὥστε παραχρῆμα λαβεῖν ὁμήρους καὶ τῇ σιτοπομπίᾳ παρασχεῖν ἀσφαλῆ κομιδήν.

Then followed the second and third years of that campaign, and by that time all the barbarians had been driven out of Gaul, most of the towns had been recovered and a whole fleet of many ships had arrived from Britain. I had collected a fleet of six hundred ships, four hundred of which I had had built in less than ten months, and I brought them all into the Rhine, no slight achievement, on account of the neighboring barbarians who kept attacking me. At least it seemed so impossible to Florentius that he had promised to pay the barbarians a fee of two thousand pounds weight of silver in return for passage. Constantius when he learned this—for Florentius had informed him about the proposed payment—wrote to me to carry out the agreement, unless I thought it absolutely disgraceful. But how could it fail to be disgraceful when it seemed so even to Constantius, who was only too much in the habit of trying to conciliate the barbarians? However, no payment was made against them, and since the gods protected me and were present to aid, I received the submission of part of the Salian tribe, and drove out the Chamavi and took many cattle and women and children. And I so terrified them all and made them tremble at my approach that I immediately received hostages from them and secured a safe passage for my food supplies.[50]

In this passage, which occurs after an account of his first years in Gaul, Julian describes his putative efforts to bring shipments of grain from Britain up the Rhine, hindered by hostile barbarian forces. Florentius, the praetorian prefect assigned to him by Constantius, had allegedly offered a ransom in order to secure these shipments in a manner that disgusted even Julian's main adversary, whom this letter had been drafted to condemn. As Adrastos Omissi has observed, however, Julian's *Letter to the Athenians* offers a "rare opportunity to watch at work the propaganda of the imperial court as it shaped the past, creating an interpretation of events that served a demanding present."[51] The letter is an *apologia*, a carefully constructed piece of defensive rhetoric,

[50] Julian. *Epist. ad. ath.* 280. The translation is by Wilmer Cave Wright, *The Works of the Emperor Julian*, Loeb Classical Library, 3 vols. (Cambridge, MA, 1913–1923), 2:245–291, at 273.

[51] Omissi, *Emperors and Usurpers in the Later Roman Empire*, 194.

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intended to prove that Julian was no mere usurper, like the enemies Constantius had previously defeated in the early 350s.[52] Florentius had remained loyal to Constantius, so it may be the case that what Julian represents as outrageous was actually something rather more mundane. Julian's word choices to describe the terms of the agreement that Florentius was proposing with the barbarians are μισθὸς (salary or fee), a term commonly associated with the payment of salary to soldiers, and δόσις (usually donation or gift), which derives from the word "to give" (δίδωμι), but which by the fourth century had become a core term in accounting vocabulary and was frequently used to describe the delivery of taxes.[53] To a contemporary Athenian audience, the first mental image summoned by these words would have been that of the taxman coming to seize the wealth of their estates. The fee, and particularly Constantius's indulgence of it, was carefully selected to serve as a rhetorical climax in Julian's *apologia*. The Batavian campaign is the last detailed vignette that Julian provides from his campaigns in Gaul, after which the letter insists on his unrequited loyalty to Constantius and describes the final circumstances which (allegedly) left Julian no other option but to revolt.[54]

We cannot be certain if it was the idea that distant barbarian brigands were receiving taxpayers' hard-earned money that proved to be a final straw for Julian's allegedly sympathetic Athenian audience nor do we know if Julian's efforts to incite rebellion from this audience succeeded.[55] But it was certainly Julian's aim to incite such rebellion and the 2,000 pounds of silver that Florentius allegedly offered to open up the Rhine to shipping is treated in the letter as a substantial, shocking sum. It certainly was when compared to (and seen as) the kind of tributary payment that the empire occasionally gave to barbarian rulers.[56] It is worth noting, however, that the language that Julian

[52] Sara Stöcklin-Kaldewey "Kaiser Julian, *An den Senat und das Volk der Athener*: Einleitung, Übersetzung und Kommentar," *Klio* 97 (2015): 687–725, at 689.

[53] On the use of μισθός to refer to salaries for soldiers, see H. G. Liddell, R. Scott and H. S. Jones, *Greek-English Lexicon*, 9th ed. (Oxford, 1996), *s.v.* μισθός. For specifically tax-related instances of δόσις in the fourth century, see IG 12.4.1.273; Denis Feissel, "Une inscription de Kos et une loi de Valens (Iscrizioni di Cos ED 90 et *CTh* 13, 10, 7)," *Chiron* 39 (2009): 297–322; and Julien M. Ogereau, *Paul's Koinonia with the Philippians: A Socio-Historical Investigation of a Pauline Economic Partnership* (Tübingen, 2014), 79–101, at 100. Julian otherwise only uses the term in a religious context to describe gifts from the gods. The only known use of the word in the epigraphic record in a religious context was in an inscription set up by Aurelius Marinus, the *rationalis rei summae*, who was probably drawing on a vocabulary he was accustomed to using in his line of work. See CIL 6.1701b.

[54] Julian, *Epist. ad. ath.* 280–81.

[55] Stöcklin-Kaldewey, "Kaiser Julian, *An den Senat und das Volk der Athener*," 691.

[56] For example, the 700 pounds of gold paid to the Huns after the Treaty of Margus in 434, which Priscus portrayed as an extraordinary figure. See Priscus, *Fr.* 1.

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employed is quite distinct from that used to describe tributary payments to barbarians elsewhere. Priscus, for example, regularly used either φόρος (tribute) or δώρο (gift) to refer to the tributary payments to Attila.[57] Likewise, Themistius used φόρος in the context of Theodosius I's suppression of the Gothic Wars.[58] These words, though certainly references to regular payments of some kind, do not bear the same fiscal connotations as those borne by Julian's language choices. We should take these language choices seriously. This payment was not tribute and the basis upon which it was critiqued thereby also differed.[59]

Other contemporary sources also associate the Batavian campaign with a broader set of disputes over fiscal policy and taxation. Relative to the total military budget, 2,000 pounds of silver was a paltry sum.[60] It was dwarfed by the five solidi and one pound of silver that Julian distributed in 360 as a donative to every soldier on his accession.[61] The most likely equivalent to δόσις in the administrative Latin spoken by those supplying Julian's armies in Gaul was *munus*. There seems to be very deliberate rhetorical slippage at work here between different forms of *munera sordida*.[62] The rhetorical force delivered by decrying the paying of the Chamavi only succeeds if we accept Julian's assertation that the payment's recipients had no legitimate claim on the empire's fiscal resources, an argument that must have carried all the more weight given Julian's claim that his troops had not even received their annual salary.[63]

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[57] Priscus, *Fr.* 9.3, 3.20, and 11.401.

[58] Themistius, *Orat.* 10.135.

[59] Müller-Seidl is to my knowledge the only other scholar to have drawn a connection (albeit implicit) between the language of *Epist. ad. ath.* 280 and the workings of the *annona* distribution system. See Müller-Seidel, "Die Usurpation Julians," 233–34.

[60] Estimates vary as to the annual salary of a soldier in the fourth century, but range between five to ten *solidi*. See Jones, *Later Roman Empire*, 2:623–25; Hugh Elton, *Warfare in Roman Europe, AD 350–425* (Oxford, 1996), 120–25; Wickham, *Framing the Early Middle Ages*, 73; and Warren Treadgold, "Paying the Army in the Theodosian Period," in *Production and Prosperity in the Theodosian Period*, ed. I. Jacobs (Leuven, 2014), 303–18.

[61] Amm. Marc. 20.4.18. Elton's lower estimate for the annual cost of paying the Roman army around 360 is at least 31,625 pounds of gold. He calculates Florentius's payment of 2,000 pounds of silver as the equivalent to 111 pounds of gold. See Elton, *Warfare in Roman Europe*, 124 and 189. On this point, see also George Woudhuysen, "The Fall of the House of Constantine (c. 330–363 A.D.)" (Ph.D. diss., University of Oxford, 2017), 230–31: "It was quite a lot of money, no doubt, but can have been little more than a rounding error in the budget of a government routinely sending 40,000 or so men to campaign in Alamannia."

[62] I am grateful to Guy Halsall for suggesting this point to me in conversation.

[63] Amm. Marc. 20.8.8 and 22.3.7. As Woudhuysen points out, the idea of a halt on payments seems implausible. If such a thing was imposed, it must have been restricted to Gaul and driven by Gallic fiscal requirements rather than form part of a conspiracy to undermine Julian. See Woudhuysen, "Fall of the House of Constantine," 231–33.

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Libanius and the Embezzlement Trial

I am not the first to have noticed the relationship and chronological coincidence between this attempted payment and Florentius's tax dispute with Julian.[64] But no one, to my knowledge, has pointed out the significance to this dispute of an embezzlement trial that appears only in Libanius's *Epitaphios*, composed between 364 and 368.[65] The text takes the form of a funerary epitaph, but there are several reasons to question whether the text was ever actually performed, and this genre might simply have been selected as an appropriate form in which to construct an encomium for Julian. If the text ever was performed (which certainly did not happen at Julian's funeral), it had a limited audience.[66] Libanius reports

[64] John Matthews, *The Roman Empire of Ammianus* (Baltimore, 1989), 88–90, treats these as separate events; Omissi, *Emperors and Usurpers in the Later Roman Empire*, 204 does likewise. Heather treats the events as related: Peter Heather, "The Gallic Wars of Julian Caesar," in *A Companion to Julian the Apostate*, ed. Rebenich and Wiemer, 64–96, at 92.

[65] R. Foerster, *Libanii Opera: Orationes XII–XXV* (Leipzig, 1904), 272–74, does not seem to notice any connection. B. K. Weis, *Julian, Briefe* (Munich, 1973), 261; and P. de Jonge, *Philological and Historical Commentary on Ammianus Marcellinus XVII* (Groningen, 1977), 53–55, both treat the trial as part of the same dispute but take the implications of this no further. Guy Sabbah, *Ammien Marcellin, Histoire: Livres XVII–XIX* (Paris, 1970), 164–65, simply notes it as one of Julian's several financial disputes with Florentius. Neither Heather, "The Gallic Wars of Julian Caesar," nor Matthews, *The Roman Empire of Ammianus*, treats the embezzlement trial as related to these events. That it is part of the same set of events as the procuring of British grain is taken as a given but otherwise unremarked upon in Fritz Felgentreu, "Aufbau und Erzähltechnik im *Epitaphios* auf Kaiser Julian: Zur Kompositionskunst des Libanios," in *Theatron: Rhetorische Kultur in Spätantike und Mittelalter*, ed. Michael Grünbart (Berlin, 2007), 53–67, at 58. There are no references to it in the standard commentaries on Libanius: E. Bliembach, *Libanius oratio 18 (Epitaphios): Kommentar (par. 111–308)* (Würzburg, 1976); Hans-Ulrich Wiemer, *Libanius und Julian: Studien zum Verhältnis von Rhetorik und Politik im 4. Jahrhundert n. Chr* (Munich, 1995); and E.-M. Seiler, *Konstantios II. bei Libanios: Eine kritische Untersuchung des überlieferten Herrscherbildes* (Frankfurt, 1998). A. F. Norman, *Libanius, Selected Works, Vol. 2: Selected Orations*, Loeb Classical Library (Cambridge, MA, 1969), 332, treats it as a separate event and also claims that it took place in the winter of 358/59, for reasons that are unclear. It also escapes notice in commentaries on Julian's own writing about these events: J. Bidez, *L'Empereur Julien, Ouvres complètes. Tome 1, 1re partie: Discours de Julien César (I–V)* (Paris, 1932); Wright, *The Works of the Emperor Julian*; M. Caltabiano, *L'epistolario di Giuliano imperatore: Saggio storico, traduzione, note e testo in appendice* (Naples, 1999); and Stöcklin-Kaldewey, "Kaiser Julian, *An den Senat und das Volk der Athener*."

[66] On the date of the text's composition and its performance context, see Wiemer, *Libanius und Julian*, 263–67; Fritz Felgentreu, "Zur Datierung der 18. Rede des Libanios," *Klio* 86 (2004): 206–17; Peter van Nuffelen, "Earthquakes in A.D. 363–368 and the Date of Libanius, *Oratio 18*," *Classical Quarterly* 56 (2006): 657–61; Felgentreu, "Aufbau und Erzähltechnik," in *Theatron*, ed. Grünbart, 53–67; and Alan J. Ross, "Text and Paratext: Reading the Emperor Julian via Libanius' *Epitaphios*," *American Journal of Philology* 141 (2020): 241–81, at 261–62. Felgentreu, "Zur Datierung der 18. Rede," 207, offers persuasive reasons for accepting 366 rather than 365 as the *terminus ante quem* for the poem's composition.

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that before Julian's attack on Batavia, ships bearing grain from Britain had been prevented from entering the Rhine by barbarian raids.[67] Although Libanius would have us believe that this had already been a problem for some time, his depiction of affairs cannot be trusted.[68] As discussed below, it is more likely the case that this situation had developed in the immediate buildup to the Batavian campaign. Immediately after this, Libanius's text discusses a trial, in which a subordinate accused his superior of κλοπή (embezzlement).[69] While presiding over the case, Florentius had allegedly accepted a bribe to rule in favor of the accused, about whom we are told nothing.[70] In Libanius's telling, the whole affair was too scandalous for Florentius to have comfortably remained involved. In response, he arranged for the case to be tried by Julian. His shock and outrage at Julian's refusal to rule in the favor of the person or persons who had allegedly bribed him led him, in this narrative, to have an ally of Julian's, probably Salutius, expelled from the imperial court.[71] Libanius then describes Julian's subsequent decision to march on the lower Rhine to restore fortresses there and to secure the British grain shipments.[72]

Libanius's wording suggests that there is a causal relationship between Salutius's expulsion and this decision, which is framed as the solution for which Julian opted instead of seeking revenge against his political opponents.[73] This sequence of causation only makes sense if, in Libanius's view, Julian's ruling in the trial against the embezzling officials was in some way prompted by the disruption of and part of efforts to restore the grain shipment. The causal relationship becomes especially apparent in Julian's very own letter to Oribasius, which describes how Salutius's expulsion was in some way tied to Julian's decision to defend the provincials from "thieves."[74] The embezzlement in which Florentius was allegedly complicit seemingly refers to revenue from Britain earmarked for the *annona militaris*. Immediately before Libanius's account of the Batavian campaign, we are told that Julian had requested an assessment of precisely this revenue which

[67] Lib. *Orat*. 18.83.

[68] Lib. *Orat*. 18.83.

[69] Lib. *Orat*. 18.84. It was used, for example, to describe Pericles's trial for embezzlement in Plut. *Vit. Per*. 31.3 and 32.2.

[70] Lib. *Orat*. 18.84–85.

[71] Lib. *Orat*. 18.84–85. Woudhuysen correctly points out that Sallustius's expulsion was probably a result not of malevolence but of Constantius's efforts to maintain a balance between showing favor to Julian or Florentius. See Woudhuysen "The Fall of the House of Constantine," 221. Salutius would later be made Julian's praetorian prefect of the East and thus appears to have had some acquaintance with the financial affairs at stake. See Amm. Marc. 22.3.1.

[72] Lib. *Orat*. 18.87.

[73] Lib. *Orat*. 18.86–87.

[74] Julian, *Epist*. 4.

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officials were allegedly pocketing for their own profit ("λογιστὰς τῆς δαπάνης, ἡ τοὔνομα μὲν ἦν στρατιωτική, τῷ δὲ ἔργῳ πρόσοδος τῶν ἡγουμένων").[75] These were likely Florentius's alleged co-conspirators. But why does Libanius draw a direct relationship between this set of incidents and Julian's campaign to restore the Rhine shipments? What is the relationship between the superindiction dispute in 357, Florentius's payment, the attack on Batavia in 358, and the holding of an embezzlement trial followed by the restoration of the shipments?

We have hints here of a narrative of political skullduggery. The set of claims advanced by Julian and Libanius in their respective representations of these events in the early 360s seem to amount to the allegation that Florentius, through his complicity in the embezzlement of imperial revenue then given to barbarian groups, was enabling barbarian attacks on Batavia.[76] This was not something one alleged lightly. The penalty for *peculatus* (embezzlement) in Julian's day was severe enough, incurring a substantial fine and lifelong loss of all status and positions. By 382, both the offense and the taking of bribes by judges who ruled on it would incur the death penalty.[77] But what was being alleged here had even more severe ramifications. Allegations about enabling barbarian attacks in the North Sea world for financial gain had caused Carausius's usurpation, which Constantius's and Julian's grandfather had previously put to an end by invading Batavia.[78] An edict issued by Constantius's father and brother in 323 punished crimes of this sort by burning the perpetrators alive.[79] Just a few months after issuing the *Letter to the Athenians*, Julian followed through on such threats, executing many of Constantius's senior administration at the tribunal held at Chalcedon with this brutal method.[80] Florentius, who had managed to escape, was sentenced to death *in absentia*.[81]

It might seem odd for Libanius to have reiterated such allegations around 365/66, but this was not as far removed from affairs as it sounds. It was only four years after Julian's issuing of the *Letter to the Athenians* and only three since Libanius and Julian had spent considerable time in correspondence and eventually one another's company during the latter's stay in Antioch.[82] It is possible that

[75] Lib. *Orat*. 18.82.

[76] Julian's court appears to have actively advertised its pursuit of accused embezzlers, since Gregory of Nazianzus, *Orat*, 4.75, cites this approvingly in his otherwise bitter invective against the emperor.

[77] *Cod. Theod*. 9.27–28.

[78] *Pan. Lat*. 4.8.1.

[79] *Cod. Theod*. 7.1.1.

[80] Amm. Marc. 22.3.

[81] Amm. Marc. 22.3.

[82] Scott Bradbury, *Selected Letters of Libanius from the Age of Constantius to the Age of Julian* (Liverpool, 2004), 9.

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Libanius had gained much of his information about the Batavian campaign by then.[83] We also know that Libanius was in correspondence with Julian about these campaigns as they took place.[84] The *Epitaphios* likely received only a very limited readership upon its composition, but may have begun to circulate more widely after Libanius's death in the 390s.[85] Libanius may well have had that wider circulation in mind. As Rafaelle Cribiore has made clear, we should not treat the circumstances of the poem's original performance as our sole guide for Libanius's intended audience.[86] Such works were composed, Cribiore demonstrates, for an imagined, idealized audience, whatever the composition of an epitaph's actual audience during recital.[87] In this respect, Libanius's ideal audience was one for whom he wanted to establish for posterity the wrongs that Julian had faced. Felgentreu underlined this point in his analysis of the *Epitaphios*, which highlights that its imagined, idealized audience would have been "dignitaries from the court, the administration, the military … delegations from the *curias* in Rome and Constantinople, as well as a large number of important personalities … a public assembly representative of the entire empire."[88]

Julian and his allies' descriptions of his adversaries' crimes must be treated with caution, however.[89] The silence of Ammianus Marcellinus invites us to query these allegations. Ammianus was a partisan of Julian, who "had access to and utilized sources composed by Julian himself" in his detailed account of the leadup to Julian's rebellion.[90] He rarely missed an opportunity to lament Florentius's

[83] His earlier orations are somewhat less detailed on Julian's Gallic career and certainly do not mention the trial. See Lib. *Orat.* 12 and 13.

[84] Lib. *Epist.* 324.

[85] Felgentreu, "Zur Datierung der 18. Rede."

[86] Rafaelle Cribiore, *Libanius the Sophist: Rhetoric, Reality, and Religion in the Fourth* Century (Ithaca, 2013), 76–81.

[87] Cribiore, *Libanius the Sophist*, 80.

[88] Felgentreu, "Zur Datierung der 18. Rede," 215–16: "Es bestand neben den Würdenträgern des Hofes, der Verwaltung, des Militärs und der Stadt Antiochien aus Delegationen der Kurien in Rom und Konstantinopel sowie einer Vielzahl bedeutender Persönlichkeiten, die aus allen Teilen des Imperiums angereist waren. Es handelte sich also um eine für das gesamte Imperium repräsentative Öffentlichkeit, die julianischer Panegyrik nach dem Tod des Kaisers kein Forum mehr bot. Dennoch erkennen wir sie in dem impliziten Publikum des Epitaphios wieder. So transportiert die Publikumsfiktion auch die Fiktion weitläufiger und anhaltender Anteilnahme am Schicksal und an den Absichten des Apostaten — und deutet gleichzeitig an, welchen Wirkungshorizont Libanios auch für den Epitaphios noch beansprucht."

[89] Mark Humphries, "The Tyrant's Mask? Images of Good and Bad Rule in Julian's *Letter to the Athenians*," in *Emperor and Author: The Writings of Julian the Apostate*, ed. Nicholas Baker-Brian and Shaun Tougher (Swansea, 2012), 75–90; Woudhuysen, "Fall of the House of Constantine," 271–77; and Omissi, *Emperors and Usurpers in the Later Roman Empire*, 194–208.

[90] Omissi, *Emperors and Usurpers in the Later Roman Empire*, 205.

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mistreatment of his beloved Caesar.[91] For such a partisan figure to fail to mention the embezzlement trial demands explanation. The most straightforward reason would be that Ammianus gives us a more accurate representation of the administrative affairs behind Libanius's and Julian's more lurid accounts. Ammianus was no stranger to Julian's tactics during this affair. The collection of taxes always presented opportunities for officials to profit through speculation on changes in price between the *coemptio* (a system of in-kind levies and compulsory purchases upon which the late Roman tax system was based) and the *adaeratio* (the commutation of such levies as well as payments of salaries made from them into cash).[92] Ammianus knew that shrewd politicians could use such opportunities to entrap their opponents, as shown by his account of the Lepcis Affair of 373–77.[93] Ammianus even described a case of alleged embezzlement by Numerius, the *rector provinciae* of Narbonensis, over which Julian presided in 359, immediately before Julian's arrangement of the Rhine shipments, and claimed that he was aware of other such trials.[94] Why would Ammianus have missed an opportunity to mention the case described by Libanius, if Florentius had truly been bribed to offer a false acquittal for the same crime?

One possible objection might be that Ammianus did not fail to mention the embezzlement trial at all. Rather, his discussion of the case has simply failed to survive the transmission of his text. It is true that our sole surviving manuscript for book 17 of the *Res Gestae*, the Fuldensis (Vatican City, Bibliotheca Apostolica Vaticana, Vat. lat. 1873), is lacunose, but it is not sufficiently so for such objections to stand.[95] The part of the Fuldensis that discusses the superindiction dispute does suffer from some of these lacunae: a small gap appears in the lower half of the pertinent folio, between *Res Gestae* 17.3.5 and 17.3.6 (between *exprimere conaretur* and *denique inusitatos*). This would be one logical place for a reference to the trial to appear, but the space available scarcely leaves enough room to fit *unius animi firmitate* on the line above or *praefecto ut secunda* [*e*] *belgicae* on that below it. A second lacuna, in *Res Gestae* 17.3.6, appears in the middle of what editors have since resolved as a coherent sentence, between *quos in cura*[*m*] and [*susc*]*eperat*.[96] The scribe who copied book 17 in his "distinctive spidery hand" is generally acknowledged as being the most accurate of the

[91] Amm. Marc. 16.12.14 and 17.3.2.

[92] Paolo Tedesco, "The Political Economy of the Late Roman Empire: An Essay in Speculation," in *Uomini, istituzioni, mercati: Studi in onore di Elio Lo Cascio*, ed. G. D. Merola, M. De Nardis, and G. Soricelli (Bari, 2019), 559–68, at 563–65.

[93] Amm. Marc. 28.6.

[94] Amm. Marc. 18.1.

[95] On the transmission history, see Gavin Kelly, "Why We Need a New Edition of Ammianus Marcellinus," in *Ammianus Marcellinus from Soldier to Author*, ed. Michael Hanaghan and David Woods (Leiden, 2022), 19–58, at 21 (fig. 1.1) and 29–35.

[96] Vatican City, Bibliotheca Apostolica Vaticana, Vat. lat. 1873, fol. 40r.

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Fuldensis scribes.[97] The lacunae left for us by the scribes of the Fuldensis can reasonably be taken (according to Gavin Kelly) as relatively accurate renditions of a damaged or illegible exemplar, with gaps left to be filled in the event that the scribes had been able to get hold of a better one.[98]

The scribe who copied book 17 of the *Res Gestae* certainly had no compunctions about leaving a sufficiently large gap when he thought the situation demanded, evidenced by the space left for the missing Greek obelisk inscription discussed in 17.4.17, which spans a full two thirds of a bifolium.[99] The idea that Ammianus could have squeezed a reference to the embezzlement trial into the gaps identified in 17.3 thus stretches credibility. There is hardly sufficient space in the first lacuna on fol. 40r. For it to appear in the yet smaller second lacuna would do considerable violence to a perfectly coherent sentence, against the logic of Ammianus's text. Meanwhile, the folio containing discussion of Cornelius Gallus's embezzlement in 17.4, which Ammianus probably intended as an allusion to the British trial, evidences no such lacunae.[100] The only alternative would be to imagine that a reference to the trial was lost in a segment so lacunose or damaged that the extent of this damage was already rendered unnoticeable in the exemplar which reached Fulda. Occam's razor would tip the balance against this explanation. Moreover, the section of the manuscript describing the trial of Numerius, a more logical location for the trial to be mentioned in any case, is not in the least bit lacunose.[101]

There are further hints that Ammianus knew about, but consciously chose to omit, the embezzlement trial in his version of these events. After describing the superindiction dispute, in his excursus on Roman obelisks, Ammianus relates the story of Cornelius Gallus, the *procurator* of Egypt who had committed suicide after being convicted of embezzlement during the reign of Augustus.[102] Ammianus's likely source, Cassius Dio, makes no mention of embezzlement, which reinforces that Ammianus made a deliberate choice to allude to the British affair.[103] Ammianus's frequent formal excurses often served a polemical function.[104] Contemporary audiences familiar with the recriminations cast about as Julian launched his rebellion would have surely spotted the resonances between this passage, the superindiction dispute, and Numerius's trial. The latter

[97] Kelly, "Why We Need a New Edition," 31.
[98] Kelly, "Why We Need a New Edition," 30.
[99] Vat. lat. 1873, fols. 41v–42r.
[100] Vat. lat. 1873, fol. 40v.
[101] Vat. lat. 1873, fols. 50r–v.
[102] Amm. Marc. 17.4.5.
[103] Cass. Dio. 53.23. On the role of *exempla* as allusions in Ammianus's work, see Gavin Kelly, *Ammianus: The Allusive Historian* (Cambridge, 2008), 256–95.
[104] See H. V. Cantner, "Excursus in Greek and Roman Historians," *Philological Quarterly* 8 (1929): 233–47; and Timothy D. Barnes, *Ammianus Marcellinus and the Representation of Historical Reality* (Ithaca, 1998), 93.

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closes with Julian's legal case for Numerius's defense: "Can anyone ever be innocent, if it is enough simply to be accused?" (*ecquis innocens esse poterit, si accussasse sufficiet?*).[105] In this light, Ammianus's treatment of Numerius reads like an attempt at deflection, pre-empting an audience who might have been reminded that Julian and Libanius had once at least implicitly accused Florentius of complicity in the very same crime. It is worth emphasizing that this episode is placed chronologically at the same point in time where Libanius places his embezzlement trial, which had the opposite outcome.[106] Ammianus's drafting of his work decades later may seem some steps removed from the late 350s, but he knew personally many of the key figures involved and had access to accounts from Julian now lost to us. Notwithstanding modern disputes regarding the precise social makeup of Ammianus's audience, this was certainly a heterogenous group extending beyond specific social circles, united primarily by their interest in a new, authoritative account of the reign of Julian.[107] There had certainly been no shortage of litigation proceedings on bogus charges in Britain in the 350s, as the career of Paulus Catena makes clear. This trial might even have been one of the latter. A letter of Julian suggests that he had been on rather better terms with the feared *notarius* in 358 than we would otherwise assume from Julian's complaints in the *Letter to the Athenians* or from Paulus's execution in 361 shortly thereafter.[108]

Nevertheless, if Ammianus consciously omitted to mention Florentius's behavior, when Libanius had no qualms about doing so, we need to determine why. One explanation might be that Ammianus chose to emphasize Julian's leniency, but for Ammianus to omit any reference at all to an allegation of a crime of such severity against one of Julian's arch-nemeses on these grounds seems difficult to accept. It is also difficult to believe that Ammianus did not have access to information about this trial. Whatever the truth of the activities by the embezzling officials, those elements of the trial's allegations which concerned Florentius's bribe were likely believed to be false by the time Ammianus composed his works several decades later.[109] To mention them would not accord with the image that Ammianus sought

[105] Amm. Marc. 18.1.4.

[106] Amm. Marc. 18.1.3.

[107] Darío N. Sánchez Vendramini, "The Audience of Ammianus Marcellinus and the Circulation of Books in the Late Roman World," *Journal of Ancient History* 6 (2018): 234–59.

[108] Paulus was certainly present at Julian's court (*Epist. ad. ath.* 282) and is thus likely the Paulus whom Libanius thanks for encouraging Julian to write to him (*Epist.* 373). See Otto Seeck, *Die Briefe von Libanios, zeitlich geordnet* (Leipzig, 1906), 233–34. The downfall of this later notorious and much hated figure would explain Libanius's decision not to name the litigant parties in the trial.

[109] On the dating, see Alan Cameron, "Nicomachus Flavianus and the Date of Ammianus's Last Books," *Athenaeum* 112 (2012): 337–58.

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to craft of Julian as a just arbiter and reformer of the law.[110] This would have been especially jarring given Ammianus's own account of the notorious prosecutions of British officials on trumped-up charges by Paulus Catena, whom Julian condemned to be burned alive at Chalcedon, as well as his fervent denial of similar allegations against Ursicinus.[111] Also noteworthy in this respect is the edict passed under Gratian, Valentinian, and Theodosius in 385, which reiterated previous legislation criminalizing the bringing of false allegations before the court (*calumnia*).[112] The legal terrain for maneuver had shifted. As was so often the case when dealing with matters that proved to be an inconvenience to his portrayal of his idol, Ammianus's solution was to pass over the matter in silence, deploying one of his well-worn techniques (allusion) to allow those of his audience who shared Ammianus's sympathies to fill in the blanks.[113]

Allegations about embezzlement were clearly a political tactic eagerly and regularly deployed by the various political factions involved in plots against one another at the imperial court in the 350s. This is not particularly surprising. Behaviors that we regard as corrupt were in some respects the grease that kept the wheel of late Roman bureaucracy turning.[114] When such allegations arose, they were usually the outcome of a political dispute between different factions at the imperial court. The new administration under Valens and Valentinian seem to have recognized the potential problems caused by a constant stream of such allegations, for they issued legislation just a few years after Libanius's *Epitaphios* that punished bringers of false allegations before the praetorian prefect with the penalty applied to those legitimately found guilty of the same crime.[115] Needless to say, those who came out at the top of these disputes would usually have more success at propagating the claim that it was their rivals who had been the corrupt

[110] Sebastian Schmidt-Hofner highlights that these efforts to propagate this image of Julian emerged from his court almost immediately upon his accession. See Sebastian Schmidt-Hofner, "Reform, Routine and Propaganda: Julian the Lawgiver," in *A Companion to Julian the Apostate*, ed. Rebenich and Wiemer, 124–71, at 125. Whether this reflects reality has been disputed. See Raphael Brendel, *Kaiser Julians Gesetzgebungswerk und Reichsverwaltung* (Hamburg, 2017).

[111] On Chalcedon: Amm. Marc.14.5.6 and 22.3.10. On Ursicinus: Amm. Marc. 15.5.35.

[112] *Cod. Theod.* 3.1.2; and *Cod. Iust.* 9.46.8.

[113] On Ammianus's handling of the Ursicinus and Silvanus affair, see David Hunt, "The Outside Inside: Ammianus on the Rebellion of Silvanus," in *The Late Roman World and its Historian: Interpreting Ammianus Marcellinus*, ed. J. W. Drijvers and D. Hunt (London, 1999), 47–56, esp. 53.

[114] Christopher Kelly, "Emperors, Government and Bureaucracy," in *The Cambridge Ancient History, Volume 13: The Late Empire, AD 337–425*, ed. Averil Cameron and Peter Garnsey (Cambridge, 1998), 138–83, at 175–80. For modern parallels, see Pranab Bardhan, "Corruption and Development: A Review of Issues," *Journal of Economic Literature* 35 (1997): 1320–46, at 1322–24.

[115] *Cod. Iust.* 46.7.

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party.[116] In this respect, it is plausible that some military officers were indeed skimming the top off of the *annona* as it was being collected in Britain. It is also plausible that Florentius, recognizing a need to avoid complicating an already delicate situation, merely acted out of pragmatism in encouraging Julian not to rule against the accused official.

The Case of the Superindiction

Our third piece of evidence is an event that Ammianus *does* mention. Numerius's case occurs at the opening of book 18 of the *Res Gestae*, where Ammianus offers it as an example of Julian's efforts to improve the administration of justice in Gaul. It seems likely that this was intended as a parallel to Ammianus's description early in book 17 of Julian's dispute with Florentius concerning the collection of a superindiction.[117] In Ammianus's telling of the dispute, Julian sought to relieve the excessive tax burden allegedly imposed by Florentius on the Gallic provinces. This would have included Britain. Florentius had allegedly deemed the typical taxation measures insufficient for fiscal requirements and resolved to cover the shortfall. The superindiction (which, as mentioned above, was a mechanism by which the empire could supplement budgetary shortfalls), was his method by which to achieve this.[118] According to Ammianus, Julian disputed this assessment and presented a set of calculations allegedly proving that existing tax mechanisms had yielded sufficient revenue, thereby circumventing the need to impose what Julian alleged was a ruinous burden on Gaul's landholders. Constantius gave assent to Julian's assessment, provided that Julian did not go out of his way to discredit Florentius. After this, Julian won fiscal control of Belgica Secunda from Florentius on the proviso that no one there was coerced to pay the tax.[119]

This dispute concerned the collection of taxes for the *annona militaris*. It must have occurred in the context of Julian's attack on Batavia, because Ammianus places it chronologically in the aftermath of the Battle of Strasbourg (357) and immediately before Julian's attack on the Chamavi (358). Moreover, the dispute directly follows a description of Julian's siege in December and January 357–58 of several fortresses occupied by Franks on the Meuse.[120] The final declaration of the annual tax levies bearing Julian's signature would have been posted across the province by the start of July, so we can presume that this dispute took place in the late winter or spring with the attack on Batavia following in the late spring or early

[116] Kelly, "Emperors, Government, and Bureaucracy," 175–78.
[117] Amm. Marc. 17.3.1–6.
[118] See n. 12, above.
[119] Amm. Marc. 17.2.
[120] Amm. Marc. 17.2.1–4.

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summer.[121] The embezzlement trial may have been held in the aftermath of this set of events, as Julian turned to arranging shipments along the route he had now reopened. The letter from Julian to Oribasius raises some questions in this respect. The letter is dateable to immediately before at least one of Julian's marches on Batavia in 358 or 359. Julian decries predations by an unnamed nemesis, who is clearly Florentius, against "provincials" and "wretched people," and then expresses his hope that Salutius would remain at court before confirming that his refusal to sign off on reports of some kind by Florentius was what prompted his decision to defend the provincials from thieves.[122] Whether this referred to the embezzlement trial or the superindiction is unclear.[123] Either way, it is suggestive of the relationship between both events.

Death and Taxes

We have established that an embezzlement trial occurred, that it concerned provision of the *annona militaris*, that it might (but need not) have been conducted on false premises, and that it was in some way tied to Florentius's undermining of Julian for his conduct during the superindiction dispute, which prompted the latter's decision to attack Batavia. Several sources suggest an association between these affairs and a dispute about the procurement and disbursement of funds to barbarians that Julian decried in his *Letter to the Athenians*. This provides a strong indication that apart from Julian and his allies, the parties involved in the dispute saw the disbursement as legitimate; no such dispute could have otherwise occurred. But how did this dispute come about? What exactly were these military officials doing in relation to the *annona militaris*, for what reasons they were doing it, and why did Julian's intervention on the lower Rhine take place to disrupt it?

Ammianus's obfuscation of Julian's political maneuvers regarding the trial suggests that other chronological manipulation and misrepresentation might be present.[124] Resolving some of the chronological uncertainties will help to solidify this picture, lending us a reasonable degree of confidence that some of these disparate events should in fact be seen as part of a related set of fiscal processes

[121] Jones, *Later Roman Empire*, 1:456. This is also hinted at by the harvest cycle for spelt. See n. 145, below.

[122] Julian. *Epist*. 4.12. For convincing arguments that Florentius was the person referred to, see Weis, *Julian, Briefe*, 261; and Caltabiano, *L'epistolario di Giuliano*, 90–91. Woudhuysen, "Fall of the House of Constantine," 229, believes that this refers to the tax dispute.

[123] Weis, *Julian, Briefe*, 261–62, believes that this refers to the superindiction dispute.

[124] Ammianus was hardly above doing this in other contexts. See Jeroen W. P. Wijnendaele, "Ammianus on Mallobaudes and Magnus Maximus: A Response to Theodosian Discourse?" in *Ammianus Marcellinus from Soldier to Author*, ed. Michael Hanaghan and David Woods (Leiden, 2022), 204–27, at 221.

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connecting the embezzlement trial to the *annona militaris*'s distribution to barbarians. Julian's first move in the winter of 357/58 was to lay siege to a group of 600 Franks, who had allegedly been pillaging the countryside and occupied fortresses on the Meuse. These were likely the same group of Salians whom Julian would attack again in 358, after which he restored these forts. Allegations regarding their plundering of the hinterland notwithstanding, this suggests that a disagreement about the Salians' presence on the Meuse and their right to supplies was the prompt for the taxation dispute.[125]

Ammianus would have us believe that the fortresses that the Salians occupied had been long abandoned in the wake of Magnentius's and Silvanus's revolts, which had more broadly, in his portrayal of events, brought about a catastrophic collapse of the Rhine frontier. John Drinkwater has shown this to be overblown rhetoric; the fall of Cologne, allegedly the climax of the disaster, had been a fluke. The situation was quickly brought back under control once Julian's armies arrived in the region.[126] Moreover, the periodic recruitment of forces from the Frankish side of the frontier had been commonplace since the Tetrarchy.[127] Large numbers of Franks already resided legitimately on the left bank of the Rhine and had fought on either (or sometimes on both) sides of Magnentius's revolt.[128] Drinkwater suggests that the group attacked by Julian could have been settled on the Meuse by Constans after 342.[129] Cuijk, a late Roman fortress on the Meuse established to control the river crossing on the road from Tongeren to Nijmegen, saw the construction of a bridge of considerable technical complexity around 347–49. It shows no evidence of destruction or abandonment before its renovation under Valentinian I.[130] Rumors of the Meuse's collapse had clearly been greatly exaggerated. Whether settled by Constans or Magnentius, the Frankish soldiers on the Meuse could easily have been billeted there legitimately. Most crucially, by Ammianus's own admission, they held out under siege from a vastly superior force for fifty-four days, suggesting that they were well supplied.[131]

This observation alone is enough to suggest that Ammianus is misleading when he claims that these Franks were merely bandits, who had resorted to occupying

[125] Amm. Marc. 17.2.1–3.

[126] Drinkwater, "Julian and the Franks"; and idem, *The Alamanni and Rome*, 214–15.

[127] Kulikowski, "Constantine and the Northern Barbarians"; and Wijnendaele, "Ammianus on Mallobaudes," 206.

[128] Drinkwater, *The Alamanni and Rome*; and Michael Kulikowski, *Imperial Triumph: The Roman World from Hadrian to Constantine* (London, 2016).

[129] Drinkwater, *The Alamanni and Rome*, 199–200.

[130] B. Goudswaard, R. A. C. Kroes, and H. S. M. van der Beek, "The Late Roman Bridge at Cuijk," *Berichten van de Rijksdienst voor het Oudheidkundig Bodemonderzoek* 44 (2000–2001): 439–560; and P. A. Seinen and J. A. Van den Besselaar, "A Late Roman Quay in the River Meuse near Cuijk, Netherlands," *International Journal of Nautical Archaeology* 43 (2014): 330–42.

[131] Elton, *Warfare in Roman Europe*, 74.

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the Meuse only as they fled Julian's forces.[132] Franks had been settled with imperial sanction in Toxandria and Batavia for more than two generations by the start of Julian's military career. As Shane Bjornlie has pointed out, the ethnographic lens that shaped Ammianus's writing treated both Roman provincials and barbarian *gentes* alike. People who are treated as Romans in his works when serving (in his view) in defense of the Roman Empire often become barbarians in his narrative when acting with hostility to it.[133] Many of Julian's own troops had also come from across the Rhine.[134] Soldiers in the state's employ were likely to turn to pillaging and banditry when discipline was lacking.[135] Many others who had turned to banditry in the aftermath of Magnentius's revolt were recruited into Julian's army.[136] The portrayal of the Franks in this episode as a band of brigands could simply be a consequence of genre convention (and the needs of Ammianus's narrative). It is true that the usurpation of Magnentius followed by the Silvanus debacle must have left the Rhine frontier unstable and poorly organized, but many Franks with legitimate ties to the state must still have been present there with the authority to requisition state resources. There is little reason not to count the Salians and perhaps even the Chamavi among them.

This set of observations enables a complete reversal in our understanding of these groups' decision to disrupt the supply of grain from Britain to the Rhine frontier. The disruption could have been caused by Julian's choice to attack the lower Rhine and to open shipping in the Rhine on his own terms, not the other way around. The lower Rhine plain and its accompanying military forces would have been almost impossible to feed without regular, annual supply from Britain. There is no indication whatsoever that Julian's armies faced food shortages or other difficulties procuring adequate supplies before the summer campaign season of 358, despite having held Cologne since the summer of 356.[137] Julian apparently successfully ensured that adequate supplies were available in a region that had seen continual military campaigning for over half a decade. He was able to do so successfully despite allegations that Constantius's allies attempted to thwart such efforts by deliberately destroying part of the *annona*.[138]

[132] Amm Marc. 17.2.1. See also Drinkwater, *The Alamanni and Rome*, 226–27.

[133] M. Shane Bjornlie, "Romans, Barbarians and Provincials in the *Res Gestae* of Ammianus Marcellinus," in *Transformations of Romanness: Early Medieval Regions and Identities*, ed. Walter Pohl et al. (Berlin, 2018), 71–89.

[134] Amm. Marc. 20.4.4.

[135] A. D. Lee, *War in Late Antiquity: A Social History* (Oxford, 2007), 140 and 163–75.

[136] Lib. *Orat*. 18.

[137] Amm. Marc. 16.3.1–3. See Heather, "Gallic Wars," 69–70 for the date.

[138] Amm. Marc. 16.3.1 and 16.11.8. See also Drinkwater, *The Alamanni and Rome*. This context makes less credible Ammianus's claim that Barbatio, at the same time as he allegedly destroyed boats, intended to bridge the river in order to thwart Julian's campaign objectives, likewise deliberately destroyed supplies 'stolen' from Julian's forces, perhaps on Constantius's orders. The ships were burned to facilitate Barbatio's withdrawal from

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Ammianus would have his readers believe that this was achievable by making recourse to the crops sown by the Alamanni in the recently liberated lands of the upper and middle Rhine, which putatively provided sufficient supplies for 357.[139] But this, too, cannot stand up to scrutiny. The middle Rhine in the fourth century possessed relatively unproductive soil for agriculture, certainly compared to the Cologne Bay on the lower Rhine plain, and especially compared to Britain, which was the real powerhouse of grain production for the Rhine armies. Moreover, in the third and fourth centuries, the upper and middle Rhine underwent reforestation and experienced a *contraction* of agriculture in favor of pastoral farming.[140] The idea that Julian could have amassed sufficient supplies to tide him over for a year from Alamannic crops alone is preposterous. True supply difficulties only arose in the prelude to Julian's attack against the Salians and the Chamavi in 358.[141] This speaks strongly against the idea that barbarian piracy had posed an endemic problem for the shipping of the *annona* up the Rhine before 358. Something else must have taken place between 356 and 358 to alter the supply situation.

What, then, had changed during this time? As Drinkwater points out, the likely reason for Constantius's decision to send Julian's forces on campaign in 357 was the growing recognition of the political embarrassment (not least encouraged by Julian's circle) resulting from Constantius's sanction of Alamannic settlement on the left bank of the Rhine as a reward for attacking Magnentius's forces.[142] In the aftermath of the 357 summer campaign, as thoughts turned to retiring for the winter and preparing the harvest for the supply of the provisions for the next year, it cannot have escaped Julian's notice that a large number of those receiving provisions on the Rhine were Franks, who had formerly been loyal to Constantius's defeated enemies. Julian had recently called attention to Magnentius's own putative Frankish and Saxon ancestry in a subtly subversive panegyric given in

Alamannic territory, as had likely always been the intention. Any destruction of supplies was collateral damage. See Drinkwater, *The Alamanni and Rome*, 230–33; and David Woods, "Ammianus versus Libanius on Barbatio's Alleged Bridge Across the Rhine," *Mnemosyne* 63 (2010): 110–16.

[139] Amm. Marc. 16.11.11–12.

[140] Drinkwater, *The Alamanni and Rome*, 90–92. The data are less robust than that from Britain or northern Gaul, but the most recent surveys identify villa contraction in the third and fourth centuries. See Sabine Deschler-Erb and Örni Akeret, "Landwirtschaft in Zeiten des Wandels," in *Am anderen Flussufer: Die Spätantike beiderseits des südlichen Oberrheins*, ed. Gertrud Kuhnle et al. (Stuttgart, 2019), 150–57; Antonin Nüsslein et al., "Alsace," in *Gallia Rustica I*, ed. Reddé, 1:657–82, at 660–62; and Antonin Nüsslein et al.,"La Lorraine," in *Gallia Rustica I*, ed. Reddé, 1:555–655.

[141] Amm. Marc. 17.8.1–2.

[142] Drinkwater, *The Alamanni and Rome*, 228. The letters that they allegedly bore testifying to their legitimate settlement are treated as scandalous by Lib. *Orat.* 18.33 and 18.39. Julian gladly exploited them during his usurpation. See Soc. Scholast. 3.1.

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Constantius's honor.[143] He would also have been aware of how suspicions against another military commander of Frankish extraction, Silvanus, had been exploited by a faction at Constantius's court.[144]

Here, then, lay an opportunity for Julian to foster a political scandal of even greater proportions. He may well have seen the crisis on the Meuse in the winter of 357 as an opportunity to nullify Frankish access to the *annona* completely. As mentioned above, many of these forces were, by necessity, supplied by superindictions. We can therefore construct a sequence of events as follows. At some point in winter shortly after Julian's campaign against the 600 Franks on the Meuse, a dispute erupted over the need to provision soldiers of Frankish extraction on the Meuse and lower Rhine. At the climax of this conflict, Julian cancelled the superindiction, which disrupted supplies to Frankish groups on the lower Rhine and prompted the Salian-Chamavi blockade. Around the same time, he arranged to have ships constructed to bring grain up the Rhine within ten months. Spelt was typically harvested around July, though perhaps as part of the sequence of crop rotation into the autumn.[145] If Julian intended these ships to transport the 358 harvest, their construction must have begun no later than October 357, and he may, therefore, have preemptively arranged for their construction in anticipation of the blockade.

Thus far, this sequence poses no chronological difficulties, but the timeline of events in 358 is more complex. Julian associates his attack on Batavia with the restoration of grain shipments. This association is puzzling due to inconsistencies between the accounts of Libanius and Ammianus. Libanius tells us that the embezzlement trial was held after the end of Julian's campaigns against the Salians and the Chamavi, but before Julian marched on (and restored) Castra Herculis and arranged to have shipments brought from Britain.[146] The difficulty hinges upon Salutius's expulsion from the imperial court, which is portrayed by Libanius as a result of the embezzlement trial and as the cause of Julian's march on Castra Herculis.[147] For his part, Ammianus tells us that the restoration of this fort took place in the harvest period of 359, which would have been around July for spelt. He also discusses Numerius's trial immediately before this, allowing us to infer that the embezzlement trial took place in advance of shipments for the 359 harvest. But we know from the *Letter to Oribasius* that Julian refused to sign certain memoranda (ὑπομνήματα), eventually prompting the expulsion of

[143] Julian, *Orat*. 1. On the subversive elements of this panegyric, see Shaun Tougher, "Reading between the Lines: Julian's First Panegyric on Constantius II," in *Emperor and Author*, ed. Baker-Brian and Tougher, 19–34.

[144] Amm. Marc. 15.5–6. On the Silvanus affair, see Hunt, "The Outside Inside."

[145] Allen et al., *The Rural Economy of Roman Britain*, 164.

[146] Lib. *Orat*. 18.75.

[147] Lib. *Orat*. 18.85–87.

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Salutius.[148] This is usually associated with the taxation dispute, which would at first glance suggest that Salutius's expulsion should instead be dated to late 357 or early 358. But as Woudhuysen points out, Julian's language suggests that Salutius had in fact not yet been expelled but was merely under threat of expulsion.[149] Even if this refers to the taxation dispute, Salutius's expulsion may have occurred later, in which case the trial would have been the final straw in a long-running dispute. Even more straightforwardly, the memoranda that Julian was unwilling to sign could simply have been documents containing Florentius's desired ruling in the British embezzlement trial.[150] While Woudhuysen is correct to point out that parts of the account of the event in Julian's letter sound like the taxation dispute, others sound like the events of the trial. This also suggests that Salutius may have in some way been involved in the latter, although, as was the case with Paulus Catena, we cannot say this with any certainty.[151]

Another chronological puzzle is Libanius's suggestion that subsequent military action took place in the process of reestablishing the grain shipments, which took place in 359 according to Ammianus. Julian, who was a major source for both Libanius's and Ammianus's information, compresses the 358 and 359 campaigns into a single set of events that took place during the second and third years of his campaign, that is, from the summer of 357–58 to the summer of 358–59 in the Attic calendar. Julian makes it quite clear that Florentius's proposed payment to the Salians and the Chamavi to resume the passage of shipping resulted in his decision to attack them and restore the shipments. This causes some difficulty, because on the initial reading, it suggests that Julian placed the restoration of shipments a year earlier than did Libanius and Ammianus.

The recognition that Julian is describing several related events from his two-year campaign allows us to resolve this. The first attack against the Salians and Chamavi certainly took place in 358, but Julian's and Libanius's words could suggest that mopping-up operations also took place in 359. These may have been undertaken to suppress factions of the Salians and the Chamavi who did not recognize the treaty established in 358, had not accepted the nullification of payments, and attacked Julian as he brought shipments down the Rhine. Alternatively, Julian's and Libanius's words may simply imply that Rhine shipments were delivered by Julian both in 358 and in 359. The second option is perhaps more plausible, given the reliance of the lower Rhine on British grain. If so, it is possible that Ammianus has imposed a neat chronological order on these events through his artificial separation

[148] Jul. *Epist.* 4.

[149] Woudhuysen, "Fall of the House of Constantine," 229 n. 192.

[150] The term had been used to refer to the decisions of a magistrate since the second century CE. See Liddell, Scott, and Jones, *Greek-English Lexicon*, *s.v.* ὑπομνήμα."

[151] His leading role in the investigations that led to the convictions at Chalcedon is suggestive of this: Amm. Marc. 22.3.1.

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of them, quite possibly inspired by Libanius's previous chronological separation of the shipments from the attack on the Salians and the Chamavi.

In either case, it is clear that Julian in his *Letter to the Athenians* (and possibly in his *Letter to Oribasius*) treated several events chronologically separated by a year in Ammianus's writing as directly related to one another: (1) the Batavian campaign in 358; (2) Florentius's attempted payment to the Salians and Chamavi that same year; and (3) the restoration of shipments in 359, with their accompanying military action, which was apparently prompted by the embezzlement trial and the expulsion of Sallustius. The link which is thereby established between the embezzlement trial and Florentius's attempted payment strongly indicates that we should relate this payment to the *annona militaris*.

Julian's Attack on Batavia: An Act of Political Opportunism

This link seems to be confirmed by Ammianus's description of the 358 campaign. Upon arriving in Toxandria in the spring or summer of 358, Julian was met by a Salian delegation, who, although quite shocked that Julian had left winter quarters, offered to maintain peace and remain quiet "as if in their own territory," provided that no one should attack them.[152] The Salians and Chamavi must by this point have blockaded the Rhine-Meuse delta in response to Julian's winter assault and his overruling of the superindiction. Julian's forces deceptively accepted these terms and offered the Salians gifts before launching a surprise attack in which the Salians were defeated, forced to hand over hostages and property, and compelled to become *dediticii* (a category of non-citizen, legally free client status in which those rendered dependent on the Roman state lacked property or territorial rights).[153] Julian then moved likewise against the Chamavi.[154] Given the close similarities between these events and those described in the *Letter to the Athenians*, the gifts that Ammianus describes seem likely to refer to the 2,000 pounds of silver arranged by Florentius and decried by Julian. Florentius may have proposed the 2,000 pounds as a token concession after Julian's new, far less favorable terms had been offered to the Salians in order to prevent simmering tensions on the Rhine from boiling over and to reopen the Rhine to shipping. The Salians were hardly able to refuse. If so, even this

[152] Amm. Marc. 17.8.3–5: "pacem sub hac lege praetendens, ut quiescentes eos tamquam in suis, nec lacesseret quisquam nec vexaret."

[153] On the *dediticii*, see A. H. M. Jones, "Another Interpretation of the 'Constitutio Antoniniana'," *Journal of Roman Studies* 26 (1936): 223–35; Christian Gizewski, "Dediticii," in *Der neue Pauly: Enzyklopädie der Antike*, 16 vols. (Stuttgart, 1996–2003), 3:360; and Gerhard Wirth, "Rome and its Germanic Partners in the Fourth Century," in *Kingdoms of the Empire: The Integration of Barbarians in Late Antiquity*, ed. Walter Pohl (Leiden, 1997), 13–55.

[154] Amm. Marc. 17.8.3–5.

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compromise clearly proved too much for Julian to accept. Ammianus portrays the need for this offer to the Salians as outrageous insolence, but this would have been a considerable concession by forces who had believed themselves to be legitimate recipients of state supplies and by no means enemies of the state.

This was clearly not enough to satisfy Julian, since he launched the embezzlement trial at some point after these events, possibly early in 359. As Jill Harries has pointed out, recourse to the emperor was the only means available for preventing cases that had collapsed for all sorts of reasons from resulting in an automatic charge of a false allegation (*calumnia*).[155] This may well be the context that lay behind Florentius's handing of the decision to Julian, in the hope that he would see the pragmatic need to find in favor of the accused. After all, Julian had presided over other such cases, as we know from the example of Numerius. In light of his previous actions, this makes sense. Florentius may have hoped that giving Julian greater responsibilities would placate him. Mistrust would later become one of Julian's main complaints.[156] Instead, Julian used this opportunity to embarrass the praetorian prefect further. It is quite possible that someone present at Julian's court familiar with these affairs, perhaps Sallustius or Paulus Catena, had a hand in these proceedings. If true, then it suggests that there was more explicit foul play on Julian's part than exploitation of an opportunity opened up by his investigation of the supply chain.

One final obstacle to this narrative is Libanius's and Ammianus's descriptions of grain being brought overland. Libanius alleged that this had taken place by necessity for several years. At face value, this seems to be confirmed by Ammianus, but his language makes no mention of such necessity. Instead, Ammianus simply states that Julian was anxious to secure the grain supply for the campaign, the delivery of which was expected from Aquitaine and could not be anticipated until the start of the summer season in July. To gain the element of surprise, he says, Julian instead forced his soldiers to rely on hard tack (*bucellatum*) rather than their usual rations, thus circumventing any need to wait for delivery of the *annona*.[157] In light of archaeological findings, Julian's decision to procure the grain from so far afield was extraordinary. This campaign was the first in which his forces encountered major supply problems.

It was probably Julian's obstinate refusal to pay the Salians and the Chamavi that had compelled him to wait to procure his supplies in this inefficient way. We can infer this from Libanius's statement that British shipping was forced to unload its cargo in Gallic coastal ports to be carried overland.[158] The ports in question must surely have been Boulogne and others in Belgica Secunda, the

[155] Jill Harries, *Law and Crime in the Late Roman World* (Cambridge, 2007), 22.
[156] *Epist. ad. ath.* 267–69.
[157] Amm. Marc. 17.8.1–2.
[158] Lib. *Orat.* 18.83.

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administration of which Julian had won after his refusal to implement Florentius's tax measures in order to pay the Chamavi.[159] This suggests that Julian launched his administrative coup to seize control of ports where grain from Britain could be offloaded and taken to the Rhine by way of the Cologne road. Control of Belgica Secunda also gave Julian access to the highly productive estates on the Somme.

Thus, the movement of grain overland was, contrary to Libanius's claims, a temporary measure, forced in response to the blockade. This makes far more sense than assuming that the longstanding method had been to bring grain overland from Aquitaine (as Ammianus reported) or Libanius's suggestion of longer reliance on overland transport by way of Boulogne. It is true that some of the *annona* would have usually been sourced by such routes. Constantius's forces had previously received supplies from Aquitaine while stationed in Valence before setting out against the Alamanni in 354.[160] Supplying Julian's forces stationed in Paris in 358 by such means was one matter, but supplying the forces left to hold the Cologne Bay since 356 (or indeed, Senon, where Julian spent the winter in 356) by these routes was quite another. Minimum estimates for journeys between these locations by means of oxcart and riverine transport are indicative of the scope of the challenge. By such means, the major military positions where Julian's forces were stationed on the Rhine in 356–58 (which must have included Cologne and probably also Xanten and Nijmegen) could be supplied in a quarter or less of the time from London by way of the Rhine than was required for similar journeys to these locations by land from Bordeaux or Boulogne.[161]

That such overland transport was unnecessary, because Julian was acting in defiance of an agreement accepted by all other involved parties, is emphasized by the shock expressed by the Chamavi at Julian's decision to attack them and their immediate concession to his demands.[162] Julian must have been keenly aware that the main danger that he faced was mutiny by his own troops. If he had paid up and maintained the status quo, grain shipments could have resumed as normal, allowing Julian to supply his troops easily for the next campaign against the Alamanni. Instead, Julian's starving troops found themselves unable to replenish their supplies from the unripe crops in Batavia and were pushed to the brink of revolt.[163] The consequences risked by failure to bring the Chamavi to heel were dire. It is hard to imagine that Julian would have acted as he did without being sure of victory. His efforts to prevent his soldiers from stealing grain from the

[159] Amm. Marc. 17.1.

[160] A reference that Ammianus may be consciously recalling in his discussion of the 358 campaign: Amm. Marc 14.10.1.

[161] Walter Scheidel and Elijah Meeks, "ORBIS: The Stanford Geospatial Network Model of the Roman World." See https://orbis.stanford.edu/# (accessed 10 April 2025).

[162] Amm. Marc. 17.8.5.

[163] Amm, Marc. 17.9.1–7.

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Salians suggest that he expected imminent resupply.[164] He was ultimately proven correct; the Chamavi were easily caught off guard. In a single stroke, Julian was able to force the Chamavi to abandon their claims and to restock the cities on the lower Rhine plain at no cost, all the while discrediting Florentius, whose efforts to keep the *annona* on the move Julian could then misrepresent as an outrageous handout of taxpayers' money to the barbarians. This did not go unnoticed at the imperial court, lending support to my suggestion that Julian had spied an opportunity in 357 to embarrass Constantius. In July 358, the immediate wake of Julian's Batavian campaign, Constantius issued legislation in Rimini reminding his praetorian prefects that that no unauthorized parties should be in receipt of the *annona*.[165]

Interpreting this set of events as a propaganda coup on Julian's part explains Florentius's protests to Constantius about Julian's overreach better than Libanius's (and Julian's) claim that Florentius had made the traitorous decision to buckle to extortion.[166] After describing the series of preparations undertaken before the summer campaign season of 359, Ammianus notes with ironic amusement Florentius's unexpected arrival at Bingen to claim the credit, once the delivery of provisions to the lower Rhine plain had in fact been secured by Julian's force of arms:

> … ubi laeto quodam eventu, etiam Florentius praefectus apparuit subito, partem militum ducens, et commeatum perferens copiam, sufficientem usibus longis.[167]
>
> … where by a happy stroke of fortune the prefect Florentius also appeared unexpectedly, leading a part of the forces and bringing a store of provisions sufficient to last a long time.

But Florentius's desire to make his own efforts known is understandable. As his predecessor Rufinus had learned only four years previously, the praetorian

[164] Eunapius, *Fr.* 3.18.2; and Lib. *Orat.* 18.87.

[165] *Cod. Theod.* 1.5.6 and 1.5.7.

[166] See also Müller-Seidel, "Die Usurpation Julians," 230.

[167] Amm. Marc. 18.2.1 and 18.2.4. Matthews, *The Roman Empire of Ammianus*, 90, reads this as a sincere expression of Florentius's loyalty, but it is clearly an example of Ammianus's frequent use of satire, on which see Roger Rees, "Ammianus Satiricus," in *The Late Roman World and its Historian: Interpreting Ammianus Marcellinus*, ed. J. W. Drijvers and D. Hunt (London, 1999), 141–55; and Danuta Shanzer, "Laughter and Humour in the Early Medieval Latin West," in *Humour, History and Politics in Late Antiquity and the Early Middle* Ages, ed. Guy Halsall (Cambridge, 2004), 25–47, at 32–34. On Ammianus's literary style more generally, see Barnes, *Ammianus Marcellinus and the Representation of Historical Reality*; and Kelly, *Ammianus*.

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prefect was often the first one up against the wall when starving soldiers turned to mutiny.[168]

This interpretation of the evidence makes better sense of the confusing narrative as it survives in contemporary sources. The conflict between the Chamavi and the Salians should be understood as a long-running factional struggle over access to the *annona*. Political struggles in *barbaricum* were often fought over access to the material benefits that the empire had to offer, even more so between groups on the imperial frontiers. Such conflicts could even be instigated by the empire as part of its policy of frontier management.[169] It was common for the losers to seek refuge in the empire, as the Salians had done.[170] This may explain both the arrival of the Salians in Batavia in the later third century and their move into Toxandria in the fourth century. Zosimus's confused narrative describes the Chamavi (or 'Quadi' as he calls them) driving the Salians into Toxandria from Batavia as a response to Julian's wider victories in Gaul and efforts to restore the grain shipments.[171] But looking back on these events from the early sixth century, Zosimus was at pains to explain how the Chamavi had arrived in Batavia immediately before Julian's campaigns. Although Zosimus is notorious for offering confused accounts of events in the west, his claim that the Salian expulsion from Batavia was the cause of the conflict on the lower Rhine accords well with the sequence of events that has been outlined above. Interpreting the conflict between the Chamavi and the Salians as a longer factional struggle over control of the *annona* and its benefits makes better sense of how both groups responded to Julian's campaign.[172] Our only detailed description of the military campaign in Batavia, preserved in fragments of Eunapius's *History*, shows that almost immediately upon Julian's entry into their territory, the Chamavi begged that he "treat this land [like that of the Salians], as if it were his own."[173] Although he does not name them, Libanius also relates that the Chamavi "at last concurred with those

[168] Amm. Marc. 14.10.3–5.

[169] Elton, *Warfare in Roman Europe*, 191; and Peter Heather, "The Late Roman Art of Client Management: Imperial Defence in the Fourth-Century West," in *The Transformation of Frontiers: From Late Antiquity to the Carolingians*, ed. Walter Pohl, Ian N. Wood, and Helmut Reimitz (Leiden, 2001), 15–68.

[170] Halsall, *Barbarian Migrations and the Roman West*, 123–25; and Michael Kulikowski, *Imperial Tragedy: From Constantine's Empire to the Destruction of Roman Italy, AD 363–568* (London, 2019), 85.

[171] Zos. 3.5–6. This can only be the Chamavi referenced in more contemporary sources. See Philip Bartholomew, "Fourth-Century Saxons," *Britannia* 15 (1984): 169–85, at 170; and Ronald T. Ridley, *Zosimus: A New Translation with Commentary* (Sydney, 1982), 171. Several of these sources, including Julian. *Epist. ad. athen.* 279 and Amm. Marc. 17.12.1, mention Constantius's campaigns against the Quadi in proximity to their descriptions of the Batavian campaign, which may explain Zosimus's confusion.

[172] Amm. Marc. 17.9.1.

[173] Eunap. *Fr.* 3.18.6: "Ὅτι τοῦ Ἰουλιανοῦ ἐς τὴν πολεμίαν χωροῦντος, καὶ τῶν Χαμάβων ἱκετευόντων φείδεσθαι καὶ ταύτης ὡς οἰκείας." Compare Zos. 3.7–8.

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who had already had recourse to peace [that is, the Salians] and they came asking to receive the same treatment on the same terms."[174] Seeing the Chamavi-Salian conflict as a factional fight over rights to the *annona*, as this suggests we should, explains Julian's decision to attack the Salians as well and receive them as *deditícii*.[175] For his aggrandizing strategy to succeed, both groups needed to be put in their place and denied the *annona*.

The unfortunate consequence of this would have been to upset the delicate balance of power on the frontier, the supporting of one faction over another, the granting of the *annona* to one versus the other, that would have been pursued by other imperial administrators. The crisis certainly would have required imperial intervention, if only to determine which faction had a right to what, but Julian used this as an opportunity to turn into a political controversy what was in fact the perfectly standard procedure of using *superindictiones* to allocate revenue to barbarian troops, discrediting Florentius in the process. It remains to explain why Ammianus represented events differently than Julian and Libanius. This is straightforward enough: to highlight explicitly in his account that the Frankish presence on the Meuse had a direct role in the cause of the taxation dispute and that the latter's outcome was what had prompted the Chamavi to establish a blockade on the Rhine would have been to admit too overtly to the normality and legitimacy of the arrangements that Julian threw into disarray. To avoid drawing any direct links between these events effectively masked the disruption that Julian had caused.

To conclude, there is good reason to believe that the barbarians on the lower Rhine who had been responsible for blockading British grain shipments saw themselves as legally entitled to claim part of the contents of these shipments and that they simply acted to get paid what they were owed. Florentius had evidently thought that they should be. Our overwhelmingly pro-Julian sources make clear the discontent among the Gallic landholding class at the additional tax burden that this would have imposed. But tax cuts have always been an easy way to win political support in high places, especially for figures like Julian, who was more concerned with short-term expediency of policy decisions than their long-term consequences. There had been no need to attack the Salians and the Chamavi. Julian's Batavian campaign was nothing more than a propaganda coup, to be later wheeled out during his usurpation. Constantius's approval at the time of Julian's intervention need not impede this interpretation. That Constantius was willing to renege on an agreement made by Magnentius should hardly surprise us. That the attack was both unnecessary and convenient for Julian's own political ambitions need not mean, of course, that Julian's motivations were

[174] Lib. *Orat*. 18.89: "καὶ τότε δὴ τοὺς ἐπὶ τὴν εἰρήνην καταφυγόντας ἐπήνουν καὶ ἦκον τῶν αὐτῶν ἐπὶ τοῖς αὐτοῖς ἀξιοῦντες τυχεῖν."

[175] Amm. Marc. 17.8.1–5; Julian. *Epist. ad. athen.*; and Zos. 3.7–8.

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purely cynical. This was not the first time that Julian had criticized excessive taxation measures or embezzlement, nor would it be the last.[176] Julian's training in the ideals of the classical tradition, perhaps more thorough than that of any other late Roman emperor, did not exactly encourage the idea that barbarians should be negotiated with on an equal footing.[177] When such strongly-held principles came into conflict with the arcane, cautious and slow-moving operations of the late Roman bureaucracy, tempers were sure to flare.[178]

But Florentius had good reasons to advise maintaining the agreement.[179] According to Ammianus and Zosimus, Julian solved the immediate military problem caused by disrupting preexisting arrangements on the lower Rhine by pressing some of the defeated barbarians into the field army, thereby removing them from the region.[180] Multiple cohorts of Chamavi, Franks, and Saxons appear in the fourth century in the East and likely participated in Julian's invasion of Persia.[181] But this was a solution that had been repeatedly employed by emperors campaigning in Batavia since the early fourth century.[182] The empire's more astute administrators had clearly understood that continuing to support those who remained in the region by keeping them supplied through the *annona* was the better way to suppress piracy on the lower Rhine. There is not the space here to consider the ramifications of the superindiction's cancellation at length, but the instability that characterized the lower Rhine and the North Sea Zone in the later fourth century should at least give us pause for thought.[183]

Julian's Batavian campaign took place in a region of profound strategic importance, whose control was vital to the effective provisioning of the Rhine army. The idea that a figure like Florentius would cede this control to hostile barbarian groups is an absurdity, which reveals Julian's propagandizing for what it is. Instead, we can read Florentius's actions as an example of exactly the kind of careful frontier management in which we know the empire's more astute

[176] Amm. Marc. 16.5.15; Julian. *Orat*. 1.21; and Tougher, "Reading Between the Lines," 26.

[177] Halsall, *Barbarian Migrations*, 45–57.

[178] On which, see Christopher Kelly, *Ruling the Later Roman Empire* (Cambridge, MA, 2004).

[179] On this point, see also Woudhuysen, "Fall of the House of Constantine," 230–31.

[180] Zos. 3.8.

[181] *Not. Dig. Or*. 31.61 and 32.37; and Amm. Marc. 25.6.13–14. On these references, see Bartholomew, "Fourth-Century Saxons," 169–71.

[182] *Pan. Lat*. 6.5 and 8.9; and Bartholomew, "Fourth-Century Saxons," 170–71.

[183] I explore the potential ramifications of this with respect to the emergence of Saxon piracy in the later fourth century and the movement of people from Northern Germany and Scandinavia to Britain between the fourth and seventh centuries in James M. Harland, "Ethnicity, Migration, and the Arrival of the Saxons: Conflating Concepts and Explaining Population Mobility," in *Current Perspectives on Early Medieval Migration, Mobility, and Material Culture*, ed. Toby Martin and Duncan Sayer (forthcoming).

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administrators were engaged.[184] Furthermore, it was precisely the regularity of the mechanisms of such management and the familiarity which both the imperial administration and their barbarian beneficiaries had with these mechanisms that enabled Julian to disrupt them for his own political aggrandizement.

It would be pushing the evidence too far to suggest that Julian's actions bore sole responsibility for the instability and mobility we witness in the North Sea in the late fourth century and beyond. But, if my interpretation of Julian's actions in the late 350s stands up to scrutiny, a logical consequence would be that the loss of access to the large volumes of surplus from Britain to which these regions had previously been accustomed and upon which they had become dependent must have had drastic effects and facilitated such processes. In this respect, Julian's allegation of embezzlement in order to discredit his political rivals, and the realignment of military supply priorities which this served to obscure, represents yet another example of the characteristic feature of Julian's approach to rule, as highlighted by the more revisionist assessments of his reign.[185] Julian was a tactical genius able to confound his enemies in political and military conflict and an idealist, who took drastic measures in the name of strongly-held broader principles. But the haste with which he resorted to his idealistic measures could come at the cost of a stability and security hard won by the empire's more prudent bureaucrats.

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[184] Halsall, *Barbarian Migrations and the Roman West*; and Heather, "Late Roman Client Management."

[185] For example, Kulikowski, *Imperial Tragedy*, 26–32. For a summary, see Stefan Rebenich and Hans-Ulrich Wiemer, "Introduction: Approaching Julian," in *A Companion to Julian the Apostate*, ed. Rebenich and Wiemer, 1–37.

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